

disclose was “not an honest, unbiased judgment after the exercise of reasonable diligence,” and there was “no legitimate business decision” made here. (Opp. at 3:23-4:6.) The FAC, however, provides no facts to support these claims. The law imparts a presumption that the HOA’s actions are in fact reasonable and done for a legitimate purpose. Plaintiff’s duty is to allege *facts* which support a finding that “if proven, would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts.” (*Berg & Berg*, supra, 178 Cal.App.4th at 1046.) The FAC fails to provide any such facts.

Ms. Volzhernia’s Liability Independent of her Position in the HOA

Plaintiff also argues that Ms. Volzhernia is “not named as a defendant solely in her capacity as a board member,” but also individually. As such, the business judgment rule does not apply to Ms. Volzhernia in her individual capacity.

The FAC, however, fails to allege any actions by Ms. Volzhernia in her individual capacity to support any of Plaintiff’s claims. As outlined above, the basis of the claim is the statement made by **the HOA** in response to the request for transfer disclosure documents. (¶¶ 11-13.) While Ms. Volzhernia is alleged to be a member of the board of the HOA, she did not individually make any disclosure. Instead, the response to the request for transfer disclosure documents was made by the HOA – not by Ms. Volzhernia personally.

While Plaintiff argues that Ms. Volzhernia had a conflict of interest, the disclosure was not made by Ms. Volzhernia solely or personally. The entire board issued the disclosure according to the FAC. There are no allegations that the entire board, or at least a majority thereof, had a conflict of interest in this transaction.

Leave to Amend

“Our Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

As this is the first time the Court has addressed these issues, Plaintiff is granted leave to amend.

Conclusion

Defendant Volzhernia’s demurrer to the FAC is **SUSTAINED**. Leave to amend is **GRANTED**. Plaintiff shall file any amended complaint within 10 calendar days of entry of the order on this Demurrer.

7. 9:00 AM CASE NUMBER: C25-01478

CASE NAME: EMAD ISKANDER VS. JOAN OCAMPO (EMPLOYEE)

*HEARING ON MOTION IN RE: MOTION FOR ORDER VACATING AND SETTING ASIDE DEFAULT JUDGMENT

FILED BY:

TENTATIVE RULING:

Before the Court is a motion to vacate default judgment (“Motion”) filed by plaintiff Emad “Ed” Iskander (“Plaintiff”) which seeks relief from this Court’s earlier sustaining of a demurrer to his original complaint without leave to amend.

For the reasons set forth below, the Court's ruling is to DENY Plaintiff's Section 473(b) Motion to be relieved of an order taken against him.

Background – Facts Alleged in Complaint

Plaintiff filed the original complaint in this matter on May 29, 2025. The Complaint alleges causes of action for general negligence, an unspecified intentional tort, and premises liability against defendants Starbucks and Joan Ocampo ("Defendants"). (Complaint, pp. 3-6.) Plaintiff alleges that on May 29, 2023, he was parked in the parking lot outside of a Starbucks located at 502 Center Ave., Martinez, CA 94553. (*Id.*, at pp. 5, 7.) Although he had spent many thousands of dollars at the store, on May 29, 2023, at the time of the incident, he had not entered the store and had no intention of doing so. (*Id.*, at p. 7.) Around 4:05 pm, a Starbucks employee, Joan Ocampo, called the police on Plaintiff. (*Ibid.*) Shortly thereafter, two Martinez police officers arrived and briefly detained Plaintiff before requesting that he move his vehicle further away from the Starbucks store. (*Ibid.*)

Plaintiff alleges that he subsequently attempted to contact the Starbucks store manager and the district manager but was unable to reach them. (Complaint, pp. 7-8.) Plaintiff alleges that he "can only surmise that this conduct was deeply nefarious in inspiration and, ultimately, discriminatory in the most insidious and perverse sense. This egregious conduct not only represented a great violation of my personal human dignity, but also constituted a gross infraction of my fundamental civil rights. Both the barista in question, as well as the organization as a whole, have behaved not only illegally and unethically, but with extreme malicious intent." (*Id.*, at p. 8.) Plaintiff alleges that he feels humiliated and suffers from PTSD due to the incident. (*Ibid.*) In addition, on multiple occasions, Plaintiff has called the police when traveling to the area that the store in question is located, to alert them of his presence in the area and to possibly expect a harassment-type call to be placed against him. (*Ibid.*)

Defendants filed a demurrer to Plaintiff's complaint on September 25, 2025, which was assigned a hearing date of December 22, 2025. The opposition was due to be filed 9 court days before the hearing, or December 9, 2025. A case management conference was scheduled for October 22, 2025, and on October 21, 2025, Plaintiff submitted a declaration requesting a continuance of the CMC due to, in part, being the "one and only provider/caretaker" for his father. (10/21/2025 Iskander Decl., p. 2.) The CMC went forward on October 22, 2025, and Plaintiff appeared and represented his intention to retain counsel and asked the Court for additional time to oppose the demurrer. (Kara A. Cole Decl. ISO Opposition, ¶ 7.) The Court denied the extension request as Plaintiff had ample time to secure counsel before the December hearing and related deadlines. (*Ibid.*) Plaintiff did not file an opposition to the demurrer on December 9, 2025. On December 12, 2025, Defendants filed a notice of non-opposition. (Cole Decl., ISO Opposition, ¶ 7.) On December 21, 2025, the tentative ruling issued, sustaining the demurrer without leave to amend. (*Id.*, at ¶ 8.) Plaintiff failed to contest the tentative. Plaintiff did attend the hearing, however, but the court confirmed that he had failed to contest the tentative and adopted its tentative in full. (*Ibid.*) Plaintiff filed this motion for relief from an order on December 29, 2025.

Legal Standard

A "court may, upon any terms as may be just, relieve a party or the party's legal representative from a

judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code of Civil Proc. §473, subd. (b).)

"In a motion under section 473 the initial burden is on the moving party to prove excusable neglect by a 'preponderance of the evidence.' " (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 624.) "An application for relief under section 473 is addressed to the sound discretion of the trial judge." (*Id.*, at p. 623.) "While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, 'these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.' " (*Ibid.*) "[A]ffidavits or declarations setting forth only conclusions, opinions or ultimate facts are insufficient." (*Id.*, at p. 624.)

"The proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades. 'The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words.' " (*Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193.)

Analysis

Plaintiff's motion to vacate default judgment ("Motion") is actually a motion for relief from an order taken against him, specifically, the January 14, 2026 order sustaining Defendants' demurrer to Plaintiff's complaint, without leave to amend. The Court will construe it as such. (*Sole Energy Co. v. Petrominerals Corp.*, *supra*, 128 Cal.App.4th at 193.)

Plaintiff argues that the law favors controversies to be disposed of on the merits, that the court has wide discretion to grant Section 473 motions, and that Section 473(b) is a remedial statute that should be liberally construed, and that doubts existing as to the propriety of setting aside default or an order, should be resolved in favor of a hearing on the merits. (Motion, p. 2.)

Plaintiff argues that the ruling sustaining Defendant's demurrer without leave to amend was primarily based on the absence of a filed opposition, but that California law strongly favors disposition of cases on their merits. (Motion, p. 5.) Plaintiff provides a direct quote from *Huh v Wang* (2007) 158 Cal.App.4th 1406, for the proposition that "illness or disability which reasonably prevents compliance with procedural deadlines constitutes excusable neglect." (*Id.*, at p. 7.) However, neither the word "illness" nor "disability" appear in that case, so it is unclear where Plaintiff extrapolated that as it is not a direct quote from that case. Plaintiff also argues that extraordinary family hardship supports relief, that he has acted diligently and in good faith, and that denial of leave to amend was premature and an abuse of discretion. (*Id.*, at pp. 7-8.) Plaintiff cites *Elston v. City of Turlock* (1985) 38 Cal.3d 227, for the proposition that "Where the interests of justice so require, doubts should be resolved in favor of granting relief." While that is not a direct quote in *Elston*, it does similarly hold that "because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (*Id.*, at p. 233.)

In their Opposition, Defendants argue that the Motion provides no basis upon which relief should be granted. (Opposition, pp. 5-6.) Defendants go on to argue that despite Plaintiff's claims of medical impairments and caregiving responsibilities, he has still filed court documents and made appearances in this case, selectively. They argue that the *Huh* case cited by Plaintiff supports denying the instant

motion because it states, “[a]s expressly worded, section 473(b) applies only to relief sought in response to defaults, default judgments or dismissals.” (Opposition, p. 8.) The *Huh* case does go on to point out that “courts have construed the provision to reach other circumstances deemed to be procedural equivalents.” (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1415.) Defendants also argue that the sustaining of the demurrer without leave to amend was proper and that they will be prejudiced if the Motion is granted. (Opposition, pp. 9-11.)

In the Reply, Plaintiff argues that Defendants improperly characterize his failures to oppose the demurrer and contest the tentative as a “conscious and deliberate decision,” he rebuts what he refers to as misrepresentations about his character and argues that the “perfect storm” of mitigating factors constitutes excusable neglect. (Reply, pp. 2-11.) Plaintiff discusses that he is the sole caretaker of his father and that his mother and sister have passed away, and that he suffers from exhaustion and sleep deprivation, that he had retinal detachment surgery, that his residence sustained storm damage, and that he has been diligent in seeking counsel. (*Id.*, at pp. 8-10.) Plaintiff finally asserts his commitment to amend the complaint, which he has already drafted, and affirms his right to a jury trial. (*Id.* at p. 11.)

The Court is not concerned with the merits of the complaint or demurrer, that issue is not before the Court. The focus here is on the instant Section 473(b) motion and whether the statutory requirements are satisfied such that the Court may provide the relief requested. “[A] party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself or of his counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he is entitled to it, and the assumption of this burden necessarily requires the production of evidence.” (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 623-624.) “[A]ffidavits or declarations setting forth only conclusions, opinions or ultimate facts are insufficient.” (*Id.*, at p. 624.)

Here, Plaintiff’s declaration in support of his Motion states, “[m]y failure to file a written opposition to Defendant’s demurrer was not intentional and resulted from mistake and excusable neglect.” This is conclusory and insufficient. There is nothing in the supporting declaration about Plaintiff’s alleged retinal detachment, the dates of that, or of any emergency that occurred to his property or of any medical conditions of his or his father’s that could support a finding of excusable neglect.

Generalized life circumstances or challenges untethered to specific circumstances surrounding the ability to timely oppose a motion or follow the court rules regarding contesting a tentative ruling is insufficient. See *Huh v. Wang, supra*, 158 Cal.App.4th at 1423 (“Neglect is excusable only if a reasonably prudent person in similar circumstances might have made the same error.”).

Further, the Court notes that Plaintiff did attend the case management conference on October 22, 2025, and was present when Judge Devine denied the request to continue the demurrer hearing so as to extend the opposition due date and was thus aware of his duties and obligations. Defendant even attended the hearing on December 22, 2025, despite not contesting it. After the Court sustained Defendants’ demurrer without leave to amend, Plaintiff has been very active in this matter—he has filed multiple ex parte applications and has been diligent in pursuing relief from that order. However, the law requires evidence to be submitted to support a request for relief from an order pursuant to Section 473(b). The Court notes that there are documents attached to the declaration, for which no

foundation is laid, but even if the Court were to consider those (a notarized letter from his father, Milad “Mike” Iskander; an email from Maggie Hanna, a director of a care facility Plaintiff’s father stayed in for several months, and a 2015 death certificate of his relative, Maha Iskander), they do not persuade the Court by a preponderance of evidence that Plaintiff did not oppose the demurrer or contest the tentative based on excusable neglect.

Ruling

For the reasons discussed above, Plaintiff’s Section 473(b) motion to be relieved of an order taken against him is DENIED.

8. 9:00 AM CASE NUMBER: C25-01722

CASE NAME: ANDREW CIBULA VS. ZEN DAY SPA

HEARING ON DEMURRER TO: ANSWER

FILED BY: CIBULA, ANDREW

TENTATIVE RULING:

Plaintiff Andrew Cibula demurs to the answer filed by defendant Kwan Fan Cheung. The demurrer is **SUSTAINED WITH LEAVE TO AMEND as to defenses 2, 7, 19, 22, 23, 24, and 25 and OVERRULED with respect to defenses 8 and 13**, as discussed below. Defendant Cheung shall file and serve an amended answer consistent with this ruling on or before May 21, 2026.

I. Factual and Procedural Background

Plaintiff filed his complaint on June 17, 2025 against Zen Day Spa and Kwan Cheung. The complaint alleges plaintiff suffered injury on June 24, 2023 when plaintiff was exposed to legionella, which defendants negligently allowed to grow and remain in a hot tub they stored in a poorly ventilated area. The complaint alleges two causes of action: one for general negligence and another for premises liability.

In response, Cheung filed an answer on December 16, 2025. The answer is a general denial, and includes 26 “affirmative defenses” as follows: (1) Failure to State Cause of Action); (2) Comparative Fault of Plaintiffs; (3) Assumption of Risk; (4) Lack of Notice; (5) No Duty Owed; (6) No Causation/Proximate Cause; (7) Failure to Mitigate; (8) Acts of Third Parties; (9) Statute of Limitations; (10) No Duty/Lack of Possession, Operation, Control or Right to Control (Landlord Non-Liability); (11) Proposition 51 (Several Liability for Noneconomic Damages); (12) Tenant Control/No Duty to Warn; (13) Intervening / Superseding Cause; (14) Compliance With Applicable Laws, Codes and Standards; (15) Contractual Allocation of Duties; (16) Apportionment; (17) Comparative Fault-Tenant/Co-Defendants; (18) Privette Doctrine / Independent Contractor; (19) Lack of Standing; (20) Punitive Damages Not Warranted; (21) Damages Limited by Law; (22) Speculative or Excessive Damages; (23) Compliance with Statute; (24) Excuse for Statutory Violation; (25) Statutory Causation; and (26) Reservation of Rights.

Affirmative defenses 10 and 12 specify that defendant Cheung is the landlord and that the tenant is responsible for any injuries.

Along with the answer, Cheung filed a cross-complaint, naming Zen . GL Inc. and Huan Fen Guan, doing business as Zen Day Spa. In the cross-complaint, Cheung alleges that Huan Fen Guan was, at all relevant times, a tenant who leased the property and operated a business known as Zen Day